

## UNIT-3: COPYRIGHT AND TRADE MARKS

Copyright: Definition – Copyright board registration in India – Ownership of copyright – Rights of the owner – Terms of copyright – Registration of copyright – Convention and UCC – Rights of broadcasting – International copyright – Infringement of copyright – Copyright Act, Amendment and Issues. Trademarks: Developing a Trademark – Trademark registration – Trademark applications – Procedure for trademark registration in India – Terms, assignment, transmission, certification, infringement of trademarks.

### COPY RIGHTS

#### Copyright: Definition:

Copyright provides protection to the expression of the idea as envisaged under the Copyright Act, 1957. As per Section 13 of The Copyright Act, 1957 "the copyright subsist in the following classes of work:

- Literary works
- Dramatic works
- Musical works
- Artistic works
- Cinematograph films; and
- Sound Recording

Copyright is a type of intellectual property right that protects the authentic work produced in areas of various arts. Under article 13 of the Copyright Act of 1957 such areas include:

1. **Literary work**– The distinct creation of any work related to literature. They may be books of any sort- technical, novels, a work of fiction, research papers, articles, blogs including computer programs, and computer databases.
2. **Musical works**-Musical works denote a musical piece that includes any pictorial notation but excludes any words or actions that are intended to be sung, spoken, or performed with music. The 'composer' is the author of the copyright in relation to 'musical works'. To make a sound recording, the author needs to take permission from the composer of musical works. The work must be written down in order to get registration of copyright.
3. **Dramatic works**– Dramatic works refer to the representation or enactment of a certain plot in form of dramatics. They may include a play, recitation, acting based on a book, choreographed movements, etc.
4. **Artistic works**-They refer to any uniquely created art interpretations which include paintings, sculptures, cartoons, graphics, drawings, diagrams, maps, and charts.
5. **Architectural works**– Architectural works means the constructive models of a building, its designs and artistic character, etc. They do not specify the method of construction.
6. **Cinematograph films**– Cinematograph shall be interpreted as embracing any work generated by any process equivalent to cinematography, including video films, and includes a sound recording accompanying such visual recording.

7. **Sound recordings**– Any work of sound recording, regardless of its storage medium, is considered a Sound Recording. Sound recordings include songs that contain singers' voices with or without music, recorded speeches or sounds, and podcasts. If the sound recording also includes music, permission from the composer of the musical piece is required for the sound recording's Copyright protection.

### Copyright board registration in India

The Copyright Board, a quasi-judicial body, was constituted in September 1958. The jurisdiction of the Copyright Board extends to the whole of India. The copyright board is a body constituted by the central govt. to discharge certain judicial function under the Act.

The Board is entrusted with the task of adjudication of disputes pertaining to copyright registration, assignment of copyright, grant of Licenses in respect of works withheld from public, unpublished Indian works, production and publication of translations and works for certain specified purposes. It also hears cases in other miscellaneous matters instituted before it under the Copyright Act, 1957.

The Registrar of Copyright also plays a very important role. The Registrar of the copyright board will perform all secretarial functions of the copyright board.

The Registrar of the Copyright is the authority under Section 9 of the Act who is the officer of the Copyright Office.

The Registrar of Copyright has powers of the civil court. [

And every order made by the registrar of payment of money is deemed as a decree of a civil court and is executed as decree of such court.

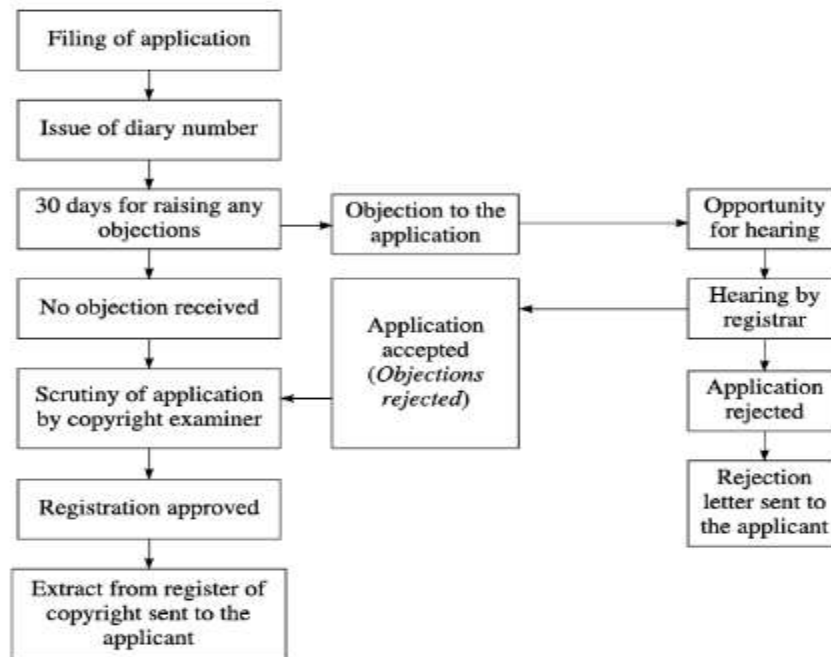


Source: <http://copyright.gov.in>

**Figure 4.1 Organization Structure of Copyright Office, New Delhi.**

Registration of copyright:

Under section 45 of the act, concerned proprietors can obtain copyright for their work by filling Application for Registration of Copyright accompanied with the prescribed fee to the Registrar of Copyrights.



**Figure 4.2 Process for Registration of Copyright.**

1. **Filing Of Application**– The first step of the registration procedure is to apply for an application. The application is sent to the DD or the IPO with all the prerequisite requirements as well as the prescribed fee concerning the respective category of the work.
2. **Issuance of Diary Number**– After the application is filed, a diary number will be issued to the applicant.
3. **Waiting Period**– A time window of 30 days is mandated for the applicant to analyze the emergence of any opposition.
  - ***If an objection is not raised***– If an objection does not arise against the copyright, it further is taken to an examiner for scrutinization to examine whether it satisfies the statutory requirements laid down under the Act and the rules.
  - ***If an objection is raised***– In case any opposition is faced by the respective copyright, an objection is filed letters are sent to both the objector and the applicant. A reply from both is awaited and when received, a hearing a held by the registrar. The discrepancies are then sorted which leads to the application being rejected/ accepted.
    - If rejected, then an application rejected is sent to the applicant.
    - If accepted, the objections are then rejected and the application further goes to the Copyright Examiner.
4. **Scrutiny by Examiner**– The examiner then analyzes the application to see whether it complies with the Act's and rules' statutory requirements
  - ***If a discrepancy is found***– A discrepancy letter is sent to the applicant, who in turn has to send a reply to the letter. Afterward, a hearing is held by the registrar which holds to resolve the discrepancies.
  - ***If no discrepancy is found***– The application then is sent to check for the final approval.

5. **Approval of registration**– After the resolution of discrepancies if any, the application finally is sent for the ultimate check of approval.
- *If the registration is approved*– The extracts are sent from the registrar to the applicant.
  - ***If the registration is rejected***– A rejection letter is sent to the applicant.

As the preceding procedures demonstrated, registration is dependent on the registrar. The applicant acquires the copyright and can lawfully exercise all rights that come with being the owner of that copyright once everything with the registrar is cleared.

Registration gives a sanction of legally established copyright and a lot of legal benefits. However, it is not mentioned in the copyright act that registration is mandatory for an action to be taken in case of infringement. It is better, if possible, to get the registration done as a measure of precaution.

### **Ownership of copyright:**

The ownership for copyright lies with the original creator

- For literary or dramatic works, the author is the creator.
- For musical works, the composer holds authorship.
- For artistic works (except photographs), the artist is the author.
- For photographs, the photographer is the author.
- For cinematographic films, the producer is the author.
- For sound recordings, the producer is the author.
- For computer-generated works of literature, drama, music, or art, the individual commissioning the work is the author.

### **Literary, Dramatic & Artistic Work**

This clause states that if an author creates a literary, dramatic, or artistic work while working for the owner of a newspaper, magazine, book, or other publication under a contract for publishing such work, the owner of such newspaper or magazine becomes the first owner of the copyrighted work, unless an agreement to the contrary is in place.

Illustration – A journalist or writer working in a newspaper house is never the owner of the work he produces; only authorship is his.

### **Photograph, painting, engraving, cinematographic film**

This paragraph states that anytime a photographer is paid to take photographs, a painter is hired to paint, and a cinematographer is hired to shoot a film, the person who hired or caused such work to be done becomes the first owner of the copyright.

Illustration – A painter hired by a school to paint the school's boundary walls with storytelling paintings presenting social and moral values will not be the first owner of the paintings he made, but the school that hired the painter will be.

**Work made under course of employment**

This section states that if a work is made during the course of employment or a service contract, the employer becomes the first owner of such copyrighted work.

In another case of *Neetu Singh vs Rajiv Saumitra*, the court agreed that the defendant had served as a director of a company for two years, but the plaintiffs were unable to prove that the literary work authored by the defendant was part of his employment obligations.

**Lectures delivered in public in behalf of another**

This clause states that if a person provides a speech in public on behalf of another person, the person on whose behalf the speech was delivered is the original copyright owner, not the person giving the speech.

**Work assigned by government**

If a copyrightable work is created as a result of a government tender, the government will be the first owner of the copyright deriving from and accruing to such works.

For example, the Indian government owns the copyright on the "statue of unity," not the engineers or architects who designed or built it.

**Work made on behalf of a public undertaking**

In the absence of an agreement to the contrary, if a work is created or first published by or under the control or direction of a public undertaking, that public undertaking will be the original owner of Copyright.

**Work of certain international organization**

If an international organization commissions someone to create a copyrightable work on its behalf, that organization will be the original owner of the work.

**Rights of the owner:**

**The rights of the owner vary with type of copyright which is mentioned below.**

**1. Literary Works**

The works protected by copyright law include literary works that are original or uniquely created. Scripts, novels, biographies, theses, technical texts, and programs are only a few examples of these creative works. The Copyrights to these could be claimed regardless of the literary worth, writing style, or overall quality of the work. A literary work's copyright grants exclusive rights.

- To make variations of a work
- For a public performance of the work
- To distribute copies of work to the public
- For reproducing the work
- To translate the work

## 2. Artistic Works

**These artistic works are protected by the Copyright Act of 1957 and include, among other things, paintings, photographs, buildings, diagrams, cartoons, moulds, plans, etchings, casts for sculptures, graphics, and sketches.**

Exclusive rights provided by the copyright for these creative works are.

I. To give away copies of the work to the public.

- To include artistic work in cinematographic films.
- To make any changes to work.
- For reproducing the original work.
- For making the artistic work reach the public.

## 3. Dramatic Works

Dramatic works refer to the portrayal or dramatic enactment of a specific plot. A drama, recitation, acting based on a book, coordinated movements, etc. may be among them. Cinematographic films of any kind are not included in this category of work.

Exclusive rights provided by the dramatic work's copyright are:

- For making any changes to the work
- To reproduce the work
- To comprise the work in any cinematographic film
- To make the work reach the public

## 4. Sound Recordings

Any audio recording, regardless of how it is stored, is a sound recording. Podcasts are examples of sound recordings, along with songs with or without music that feature vocalists. The authorization of the musical piece's composer is necessary for the sound recording's [Copyright registration](#) protection if it also contains music.

Exclusive rights granted by the copyright of sound-recorded works are:

- To provide the sale or hire of any copy of the sound recording
- For communicating the sound recordings to the general public
- To create any other recording that symbolizes it

## 5. Musical Works

"Musical work" refers to a musical composition containing any visual notation. Still, it leaves out any actions or words meant to be sung, spoken, or performed in time to the music. The author of the copyright relation to "musical works" is the "composer." The author must obtain permission from the musical works' composer to record sound.

Exclusive rights granted under the copyright for songs in musical works in India are:

- For reproducing the musical work
- For reaching out the work to the public
- To make any kind of variation to the work
- To perform the musical work in the public
- To provide copies of the work to the public
- To make a sound recording or a cinematographic film in respect of the musical work

## 6. Cinematograph Films

Cinematographic films typically contain all previously created visual and moving image recordings. It is a kind of work that combines video films with audio recordings made using any method, whether analogue or digital; whatever way of maintaining such visual records is acceptable, as are visual recordings in any format.

The copyright under cinematograph film work grants exclusive rights

- To hire, sell, or offer a copy of the film.
- For allotting the cinematograph film to the public.
- For making a copy of the film or making any changes to it.

## 7. Architectural Works

Architectural works include a building's actual construction models as well as its designs and aesthetic features. However, they make no mention of the construction technique.

### Terms of copyright:

Copyright is protected for a limited time. Economic rights have a time limit, which can vary according to national law. In those countries which are members of the Berne Convention, the time limit should be equal to or longer than fifty years after the creator's death. Longer periods of protection may, however, be provided at the national level.

#### Term of Copyright for Posthumous Publications

it is the publication of work after the death of its author. The term of copyright protection of a posthumous publication subsists for a period of sixty years and unlike in others, here such period is calculated from the date of publication."

#### Term of Copyright for Anonymous Publication

**If** the publication of the work anonymously, that is, publication when the author of such work is unknown. The copyright term of an anonymous publication, as provided under **Section 23** of the Copyright Act, 1957, is also for a period of sixty years, calculated from the beginning of the calendar year next following the year in which the work is first published.

#### Term of Copyright for Photographs

The Indian Copyright Act provides for copyright in a photograph for a period of 60 years from the beginning of the calendar year, following the year in which the photograph is published.

### **Term of Copyright for Cinematograph Films**

Copyright of Cinematograph Films<sup>9</sup> shall subsist until sixty years from the beginning of the calendar year next following the year in which the film is published.

### **Term of Copyright for Sound Recordings**

Copyright of sound recordings<sup>10</sup> shall subsist until sixty years from the beginning of the calendar year following the year in which the sound recording is published.

### **Term of Copyright of government works**

In the case of a government work, where Government is the first owner of the copyright therein, copyright subsists until sixty years from the beginning of the calendar year next following the year in which the work is first published.<sup>11</sup>

### **Term of Copyright where a public undertaking is the first owner**

In the case of a work, where a public undertaking is the first owner of the copyright therein, copyright subsists until sixty years from the beginning of the calendar year next following the year in which the work is first published.<sup>12</sup>

### **Term of Copyright of work of an international organization**

In the case of a work of an international organization to which the provisions of section 41 apply, copyright subsists until sixty years from the beginning of the calendar year next following the year in which the work is first published.<sup>13</sup>

An author's moral right as a right against distortion is available even after the expiry of the term of copyright.

Convention and UCC:

**Universal Copyright Convention**, (1952), convention adopted at Geneva by an international conference convened under the auspices of UNESCO, which for several years had been consulting with copyright experts from various countries. The convention came into force in 1955.

## **NATIONAL TREATMENT**

Each Berne member country automatically provides citizens from other member countries with, at a minimum, the same copyright protections it provides for its own citizens. This is the notion of national treatment.

For example, when you photocopy an article in Australia, you apply Australian law — even if that article originates from an American or British author/copyright owner. Similarly, if you show a French film in public in a U.S. theatre, you apply U.S. copyright law with respect to the right to perform a work in public.

## AUTOMATIC COPYRIGHT PROTECTION

In Berne member countries around the world, copyright protection is automatic upon the creation of a work in a fixed form (i.e., once the work is in some sort of tangible form). This means that no registration or deposit with a government copyright office is required in order to have copyright protection.

There are, however, voluntary government registration systems where copyright owners can register their works, thereby gaining entitlement to certain benefits, especially in cases of copyright infringement of their works.

Similarly, the use of the copyright symbol isn't mandatory under the Berne Convention and by extension in its member countries. However, using the symbol — © — is always a good reminder to the public that copyright exists in a work.

## COPYRIGHT DURATION

The duration of copyright is determined by the copyright statute in each country. In the U.S., Canada and in European Union (EU) countries, it's life-plus-seventy. Specific works and circumstances may result in deviations from these general rules of copyright duration.

Once copyright in a work has expired, that work is said to be in the *public domain* and anyone may freely use, adapt and reproduce that work.

## EACH COUNTRY IS UNIQUE

Common rights found in copyright acts around the world include:

- Reproduction
- Adaptation and translation
- Performance in public
- Display or communication to the public

Rights of broadcasting:

**Broadcast reproduction right.** -- (1) Every broadcasting organization shall have a special right to be known as "broadcast reproduction right" in respect of its broadcasts.

(2) The broadcast reproduction right shall subsist until twenty-five years from the beginning of the calendar year next following the year in which the broadcast is made.

(3) During the continuance of a broadcast reproduction right in relation to any broadcast, any person who, without the license of the owner of the right does any of the following acts of the broadcast or any substantial part thereof, --

(a) re-broadcast the broadcast; or

(b) causes the broadcast to be heard or seen by the public on payment of any charges; or

(c) makes any sound recording or visual recording of the broadcast; or

(d) makes any reproduction of such sound recording or visual recording where such initial recording was done without license or, where it was licensed, for any purpose not envisaged by such license; or

<sup>3</sup>[(e) sells or given on commercial rental or offer for sale or for such rental, may such sound recording or visual recording referred to in clause (c) or clause (d).]  
International copyright:

### **Rights of a Copyright Owner**

The name of the author or publisher that appears in the copies of dramatic, literary, artistic or musical work is presumed to be the author/copyright owner of the work. A copyright owner has the following rights in the copyrighted work:

- Produce the work in public
- Publish the work
- Perform the work in public
- Translate the work
- Make a cinematograph film or a record of the work
- Broadcast the work
- Make an adaptation of the work
- Make copies of the work and distribute them
- Prevent others from unauthorized usage of the copyrighted work

### **Copyright Infringement in India**

As per the Copyright Act, 1957, the use of a copyrighted work without the permission of the owner results in copyright infringement. Infringement occurs when a third person unintentionally or intentionally uses/copies the work of another without giving credit. It is usually classified into two categories, i.e. primary and secondary infringement.

Primary infringement occurs when there is an actual act of copying, while secondary infringement occurs when unauthorized dealings take place, such as selling or importing pirated books, etc. In the case of secondary infringement, the infringer will know about infringement, while in the case of primary infringement, the infringer may or may not know about infringement.

The following elements should be present for copyright infringement:

- The copyrighted work is the original creation of the author

- The copyright infringement work is actually copied from the work of the author

## **Remedies For Copyright Infringement**

The authors/copyright owners can take legal action against a person or entity infringing their copyrighted works. The copyright owner can file a civil case in a court having jurisdiction and is entitled to remedies by way of damages, injunctions and accounts. A criminal suit can also be filed in a court of a First-Class Judicial Magistrate or Metropolitan Magistrate.

### **Civil Remedies**

**Injunction:** Injunction is the effective remedy for copyright infringement. An injunction means a judicial process through which the infringer is restrained to continue the infringing acts or is ordered to restore the position which stood before the infringement.

**Damages:** Damages are compensation provided to the copyright owner. The purpose of ordering to provide the damages to the copyright holder is to restore the owner to the earlier position. There are various factors to determine the damage amount. Generally, the damages are the amount the copyright holder would have gotten from the infringing acts if the infringer had obtained the license for such acts. Various other factors, such as loss of reputation, loss of profit to the copyright holder, decrease in the sale of the copyright holder's work, etc., determine the damages amount.

**Accounts:** The infringer can be asked to submit an account of profits made from the sale of the copied works and pay such an amount to the copyright owner.

### **Criminal Prosecution for Copyright Infringement**

When a person knowingly infringes or abets the infringing act of a copyrighted work, then the offence is a criminal offence under the Copyright Act, 1957. When the copyright owner files a criminal suit for copyright infringement, the minimum punishment for the infringement is imprisonment for six months, which can extend to three years, with a minimum fine of Rs. 50,000, which can extend up to Rs.2 lakhs.

In the case of a subsequent and second conviction, the punishment is imprisonment for a minimum of one year, extending to three years and a fine of Rs.1 lakhs, extending to Rs.2 lakhs. Any police officer (not below the sub-inspector rank) can seize the infringing copies without a warrant when the police officer is

satisfied that a copyright infringement offence in any work has been committed and produce them before the Magistrate.

Copyright aims to protect the author's rights and provide them with economic benefits. The scope of copyright protection extends to all original works which demand creativity, including computer software and databases.

### **Copyright Act, Amendment and Issue**

Effect of Copyright (Amendment) Act, 2012 on Copyright Societies

The Copyright (Amendment) Act, 2012 (2012 Amendment) came into force with the primary objective of establishing an equitable and just framework for administration of copyright and sharing of revenue to protect the rights of owners and authors incorporated in cinematography and audio recordings.

As a part of the 2012 Amendment, section 33(3A) was added, which laid down a new guideline that any copyright society carrying out the business of granting or issuing copyright licence must register itself again within the period of 12 months from the date of the amendment. Therefore, any copyright society which existed prior to the amendment has to re-register itself within the given time frame. Also, there was no punishment prescribed in case any copyright society fails to do so.

Problems with the Amendments in 2012 and 1994

There are always 2 sides of every coin. Though the attempt of government in the amendments was genuine, there are certain ambiguities that jeopardise the interest of non-author owners of a copyright in case of creative works. Section 33 which was inserted by the 1994 Amendment mandated only the copyright societies to carry in the business of "issuing or granting licence" for creative works. But, it does not say anything about the copyrightable work. Also, it has to be taken into consideration that Section 18 of the Act says that the owner of creative work can assign the copyright to any "person".

Therefore, an owner or author has the right to assign his copyright to a production company and also has the right to assign it to any other person at the same time. So, in such a process, forming a copyright society is not necessary. However, a specific bar is created by Section 33 on any other person or entity who may be assigned any such right as stated in Section 18 to issue these license as a copyright author or owner of a copyrightable work. The ambiguity is that only a copyright society has the right to get involved in business of issue of licence by virtue of Section 33, even when under Section 30 the copyright owner has the valid right licence a work. Section 30 and 18 are provisions of the act since it came into existence. The impact on these sections by Section 33 which was added later has not been clarified either by the statute or any of the amendments. It is still ambiguous as to whether Section 18 and 30 will prevail over Section 33 or not, this ultimately leads to high legal ambiguity while deciding the matters by the courts.

It is a mandatory for the production companies in the music and film industries to engage third parties for collecting and licensing and for collecting public performance licenses as well for collection of fees in that respect. Alternatively, there is an option to assign, in terms of Section 18, public performance rights to

third-party collecting and licensing bodies who can monitor such right so as to ensure that no infringement of any copyright is done by the non-owners. The third party due to their specialization in such activities make sure that no infringement in any form is done in country like India with such a massive population.

A fine example of such a scenario is the case of Novex Communication (P) Ltd., a company, which as per its website, in terms of Section 30, is holding authorization as agents or is assigned with rights under Section 18 for administration of copyright and licensing purposes.

There is a presence of legal vacuum upon the interests of the third party licensing entities carrying out the work of issuing and granting license in respect of creative works. The 2012 Amendment might have clarified the position with regard to the same but it has only added up to the ambiguity by providing a new sub-section (1) of Section 33. Now, according to this section, only a copyright society can carry out the work of business of granting license for issuing or granting of any copyright with respect to any dramatic, artistic, literary musical or artistic work incorporated in a film or sound recording. This proviso leaves bodies like Novex on an uncertain footing legally.

## **TRADE MARK**

A trademark is a word, phrase, symbol, or design that helps distinguish the source of the goods of one party/organization from that of others.

Trademark is defined in the Trademark Act, 1999 as, "trademark means a mark capable of being represented graphically and which is capable of distinguishing the goods or services of one person from those of others and may include the shape of goods, their packaging and combination of colors."

## **DEVELOPING TRADEMARK:**

Developing an effective and eminent strategy ought to be the be-all and end-all of any company. A well-considered trademark strategy will emphasize the uniqueness of the goods and services of the company. It should be distinct, definable, and recognizable.

Here are some key points for developing your trademark strategy:

### **1. SELECTION OF A RIGHT TRADE MARK:**

A trademark search must be conducted before filing a trademark application to identify potential with existing trademark applications and even registered trademarks. A trademark search can be performed by entering the word mark and the class in which the investigation is conducted. If a similar trademark exists, the newly applied Trademark should be changed, or a new name can be chosen. If the brand name is unique, it is possible to register

The process of brand trademark registration in India is now possible and convenient through the trademark registration portal with one of the below things or even a combination of the following:

- Letter
- Word
- Number
- Phrase
- Graphics
- Logo
- Sound Mark
- Smell or a mix of colors

## 2. **MAKING RIGHT CHOICE:**

Choosing a good trademark is very important for any business. We have to consider many points in choosing a good trademark.

- It should be easy to speak, spell, read and remember.  
Eg. Tata, Puma, Adidas
- Avoid selecting a trademark that is identical to other trademarks in the same line of business. However, you may select a trademark that is similar, but not confusingly similar.
- Do not select trademarks that are similar to well-known trademarks.  
Eg. Tata, Sony, Honda, Google, etc.
- 

### Step 3: **REGISTRATION:**

- The registration process in India is a 'first to file' basis. Therefore, it is important to apply for registration as soon as possible. A trademark usually takes 2-3 years to get registered, if the trademark is not being opposed by a third party<sup>[1]</sup>. Trademark applications are handled by the Office of the Controller General of Patents, Trade Marks,
- Within the term of three months publication in the Trademarks Journal, if not opposed by a third party, the trademark will proceed for registration and the trademark authority will proceed to give a registration certificate.

## **TYPES OF TRADEMARKS:**

The different types of trademarks as provided by the Trademark Act in India are as follows:

- **Product Mark**
- **Service Mark**
- **Shape Mark**
- **Certification Mark**
- **Pattern Mark**
- **Sound Mark**

### 1) **Product Mark**

One of India's most substantial types of trademarks is the Product mark. It is a mark linked to the products or goods, but it does not include services. The use of product marks is to recognize the source of a product and differentiate the products manufactured and sold by one person from the others. Trademark safeguards the status and goodwill of the business. It is done under the Trademark Act.

A symbol of TM can be used once the application is filed and the registration is under process.

## **2) Service Mark**

A Service mark is a mark linked to the services and not the products or goods. A service mark is used to recognize the source of assistance. A service mark differentiates the services of one person from that of another. It For example, companies offer software assembly, computer hardware, beauty and health care services, etc.

## **3) Collective Mark**

The mark used by the group of companies and protected by the group collectively is termed collective marks. The effect is used to represent or inform the public at large about the unique idea of the product. It is used to promote certain products with specific characteristics in that field. Such kind of mark is registrable under the Trademark Act.

## **4) Certification Mark**

A mark used to indicate the particular goods or services are certified by the owner of the mark in terms of material, origin, quality, or any other characteristics is termed a certificate mark as given under the Trademark Act. Eg:ISO

## **5) Shape Mark**

A mark used to indicate the shape of goods, their packing, etc., are termed Shape Mark as provided by the Trademark Act. It is used only when it is likely to present the product's shape. These shape marks make it different from the other products. If the form has some distinctive features, such effects can be registered under the Trademark Act.

## **6) Pattern Mark**

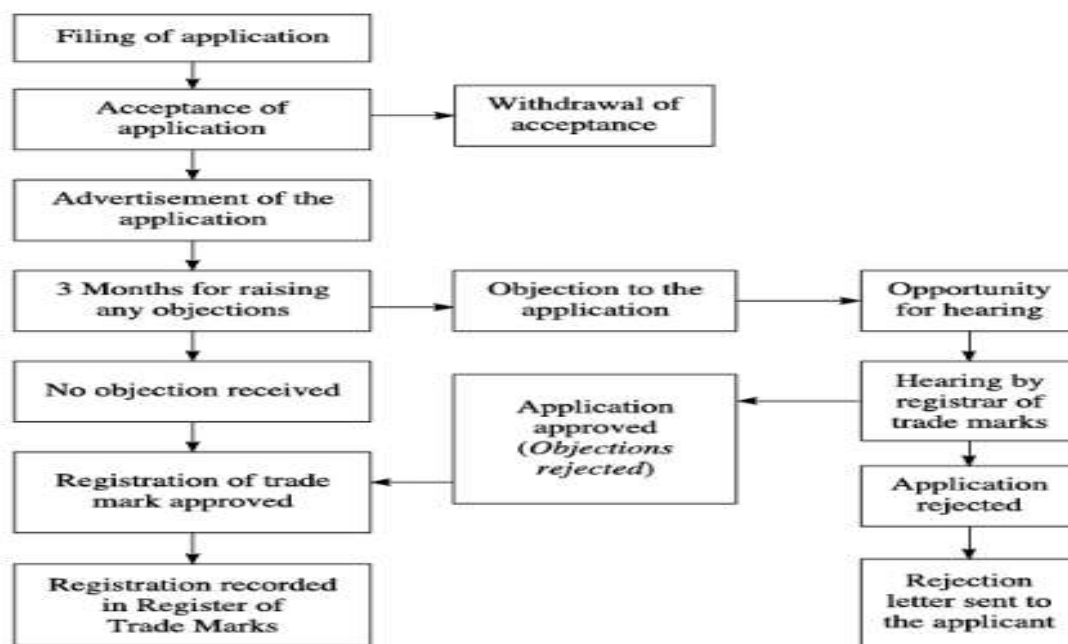
A mark that comprises a pattern capable of identifying the product or services that originate from a particular undertaking and can be distinguished from the other project can be termed the Pattern Trademark as provided by the Trademark Act. The method of evaluation is similar to other trademarks.

## **7) Sound Mark**

A sound mark is a mark used when a specific sound performs the purpose of uniquely classifying the source of a product or a service; it is termed a sound mark. In such cases, such sound is connected with a company or its products or services. It is provided by the Trademark Act.

## **PROCEDURE FOR REGISTRATION OF TRADE MARK:**

The process to get a trademark registered involves filing of the trademark registration application, examination of the trademark, publication or advertisement of the trademark, opposition (objections) if raised/ found, registration of the trademark and renewal of the trademark after every 10 year



**Step 1: To file the trademark application:** The application for registration of the trademark can either be filed in a single- class or a multi- class totally depending on the goods and services the business pertains to. The application for trademark registration has to be supported with multiple documents with complete details of the trademark for which the registration is sought.

**Step 2: Acceptance of application:** The application is examined and being accepted for further process if all conditions are fulfilled. In case if conditions are not fulfilled the application may not be accepted or sometimes the applicant also may with draw the application based on the trademark search.

**Step 3: Advertisement of the trademark:** Once the registration application has been accepted, the said trademark is advertised and also published in the Trade Marks Journal for a period of 4 months. The aim behind the publication and advertisement is to invite the general public to filing an opposition against the registration of the mark.

**Step 4: Opposition from general public** Post the advertisement and publication of the trademark in the journal, any aggrieved person can file a notice to oppose against the registration of the advertised/ published trademark. This notice to oppose the trademark has to be filed within 3 months of publication in the Trademark Journal. In case the applied for trademark is opposed/ objected, then the due process of law has to be followed which includes filing the counter-statement application, evidence as well as hearing in order to get the trademark registered.

**Step 5: Handling objections:** If the trademark registration application is objected by the Trademark Officer, the trademark applicant has the right to appear before the Trademark Officer and address the objections.

If the Trademark Officer is satisfied with the justifications of the trademark applicant, the trademark would be allowed for trademark journal publication.

In case the Trademark Officer is not satisfied with the justifications, the trademark applicant has the right to appeal the decision of the Trademark Officer before the Intellectual Property Appellate Board.

**Step 6: Registration of the trademark:** The final step towards the entire procedure is registration where the application proceeds to registration after conquering the objection and/ or the opposition against the said registration of trademark. Besides this, in case there has been no objection against the registration of the trademark during the advertisement/ publication period of 3 months, then the trademark is issued an auto-generated registration certificate. Once the registration is complete, it is valid for a period of 10 years after which it would be required to be renewed within a prescribed time period.

## **ASSIGNMENT AND TRANSMISSION OF TRADEMARK**

Assignment and transmission of a trademark refer to the legal process by which the ownership rights of a trademark are transferred from one person or entity to another. This process involves the transfer of the exclusive rights associated with the trademark, which can include the right to use, license, sell or enforce the trademark.

**Assignment:** The assignment of a trademark involves the complete transfer of ownership from one party to another. In this case, the assignee (the party receiving the trademark rights) assumes full control and responsibility over the trademark, including the right to use it exclusively for their own commercial purposes. The assignor (the party transferring the trademark rights) relinquishes all rights and interests in the trademark.

**Transmission:** On the other hand, the transmission of a trademark typically refers to the transfer of ownership rights in situations where the original owner passes away or there is a change in the ownership due to legal proceedings, inheritance or other circumstances. Transmission may occur through the distribution of assets in a will, the settlement of an estate or a court order.

### **TYPES OF ASSIGNMENT & TRANSMISSION:**

1. Complete Assignment or Transmission
2. Partial Assignment or Transmission
3. Assignment with goodwill
4. Assignment without goodwill

### **Complete Assignment and Transmission**

Complete Assignment refers to the transfer of all rights associated with a trademark from one individual to another. This includes the rights to further transfer the trademark, receive royalties and exercise full control over its usage. For instance, if proprietor 'X' sells all rights of a trademark to proprietor 'Y', 'Y' becomes the exclusive owner with the freedom to use the trademark as desired, transfer it to others, set guidelines for its usage and receive royalties. No approval from 'X' is required in this case.

### **Partial Assignment**

Partial Assignment involves the transfer of ownership restricted to specific services or products. For example, if proprietor 'X' has a trademark (👑) related to men's lifestyle products but only wants to assign it to shoes, 'X' can transfer the

trademark to 'Z' with the condition that 'Z' can only use it for shoes. 'X' retains the right to use the trademark for all other products. This type of transfer is known as a partial assignment.

### **Assignment with Goodwill**

Assignment with Goodwill refers to the transfer of a trademark along with all the associated rights and values from one person to another. For instance, if 'X' assigns and transfers their trademark (👑) to 'Z' with all rights and values intact, 'Z' gains full rights to use the trademark for men's lifestyle products or any other future products they manufacture.

### **Assignment without Goodwill**

Assignment without goodwill involves the transfer of a trademark in a way that allows its use for purposes other than the original one. For example, if 'X', who deals with men's lifestyle products, assigns and transfers their trademark (👑) to 'Z' with the condition that 'Z' can use it for any product except men's lifestyle products.

### **Essentials of Assignment:**

Section 42 of the Trademark Act outlines the conditions for the assignment and transmission of a trademark, The following are the essentials of assignment

- The trademark assignment must be in writing.
  - The assignment must have the following two identifying parties-
    - An assignor (owner of the trademark); and
    - An assignee (buyer of the trademark).
  - The assignor must have the intention and consent for the trademark assignment.
  - The trademark assignment must be for proper adequate consideration
- Difference between assignment and transmission

| <b>Terms</b>        | <b>Assignment</b>                                            | <b>Transmission</b>                                           |
|---------------------|--------------------------------------------------------------|---------------------------------------------------------------|
| <b>Definition</b>   | Transfer of ownership rights from one party to another       | Passing of rights to a third party while retaining ownership  |
| <b>Ownership</b>    | Ownership of the trademark is transferred                    | Ownership of the trademark remains with the original owner    |
| <b>Rights</b>       | Full or partial rights depending on the terms and conditions | Restricted rights granted to the third party                  |
| <b>Goodwill</b>     | Can be with or without the goodwill of the business          | Can be with or without the goodwill of the business           |
| <b>Registration</b> | Assignment of a registered trademark requires registration   | Transmission can be of a registered or unregistered trademark |
| <b>Legal Proof</b>  | Acts as legal proof in case of disputes or challenges        | Acts as legal proof in case of disputes or challenges         |

## CERTIFICATION OF TRADE MARK:

Certification marks are essentially trademarks that are used to certify that the goods or services on which they are affixed comply with certain quality standards prescribed by a certifying entity. Such certifying entities, upon the fulfilment of these quality standards, license the certification mark to be used. By indicating that certain standards are met (eg, in respect of origin, material, mode of manufacture of goods or performance of services, quality or accuracy) a certification mark plays the crucial role of instilling legal assurance and acts as evidence that such goods or services are up to certain standards and quality. Due to its characteristic of essentially instilling confidence among consumers, a certification mark is often referred to as a "mark of validity" or a "mark of assurance".

A certification trade mark shows consumers that a product or service meets a standard or has a particular characteristic attributed to it. For example, your mark may indicate that the product or service:

- meets a certain standard of quality;
- is made of particular materials;
- has been made in a certain way; or
- is from a particular location.

### **Certification Marks Issued for Different Products**

The following are the most famous State enforced (statutory) **certification marks issued for different products in India**, informed here to help the people and economic entities concerned:

- **BIS Hallmark:** --- Issued by the Bureau of Indian Standards (BIS), this **BIS Hallmark** certification is a hallmarking system for the certifying the purity and standard of precious metals like gold and silver and jewelries of these in entire India. This BIS hallmark has been in use since 2000 for gold and its jewelries, and since 2005 for silver and its jewelries. Here, it may be noted that BIS is the national standards organization of India.
- **AGMARK:** --- **Agmark certification** mark is exclusively used for various agricultural products in India, and fortifies that those products duly and strictly conform to a certain set of related standards. This certification mark is issued by the Directorate of Marketing and Inspection, Govt. of India, and has been in legal force as per the Agricultural Produce (Grading and Marketing) Act of 1937 (including amendment in this in 1986). At present, the AGMARK standards cover quality guidelines for 213 different agricultural goods and commodities which encompass diverse pulses, vegetables and fruits, cereals, vegetable oils, essential oils, and some semi-processed products like Vermicelli. In addition to the 'Central AGMARK Lab' located in Nagpur, there are State-owned Agmark laboratories in 11 nodal cities across India.
- **ISI Mark:** --- ISI is the certificate from Indian standard Institute. This **ISI certification mark** is mandatory for various standard industrial products, and has been effective since 1955.
- **ISO:** ISO certification is a seal of approval from a third party body that a company runs to one of the international standards developed and published by the International Organization for Standardization (ISO).
- **BS:**  
**British Standards (BS)** are the standards produced by the BSI Group which is incorporated under a royal charter and which is formally designated as the national standards body (NSB) for the UK.<sup>[1]</sup>

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## INFRINGEMENT OF TRADEMARK:

Infringement occurs when other person uses a trademark that is same or similar to registered trademark for the same or similar goods/services.

### **Grounds Of Infringement:**

According to Section 29 of the Trade Marks Act, 1999, the followings are the grounds to trademark infringement in India:

1. If the unregistered mark is identical to a mark registered for similar goods and services.
2. The similarity of an unregistered mark with the infringed mark is likely to create confusion in the minds of consumers.
3. The unregistered mark is similar to a registered trademark having a reputation in the market.
4. The registered trademark is used on labelling or packaging without authorization.
5. The registered trademark is used in advertising, taking unfair advantage detrimental or against the reputation of trademark.

### **Remedies Of Trademark Infringement:**

The proprietor of the Registered Trademark can initiate legal proceedings against the infringer by stating the unfair business practices. The Indian Trade Marks Act, 1999 provides for both civil and criminal remedies for trademark infringement against the unauthorized use of its limitation by the third party.

a. **Civil remedies in form of Injunction:** An injunction's role is defined as preventing one individual from carrying out a specific action or task through the judicial process. In simple terms, an injunction is a Court order that prohibits a party from taking certain actions such as continuing sales of an infringing product. An injunction can completely bar the unauthorized use of the trademark by a party through the judicial process. The Court grants protection to the owner of trademark through a temporary or permanent injunction.

#### **b. Civil Remedies In Form Of Damages:**

Damages are the monetary compensation for the loss incurred by the trademark owner as a result of trademark infringement. Under this remedy, the monetary value of a financial loss or brand impairment is recovered. The court will determine the number of damages after examining the owner's actual and prospective losses as a result of the infringement.

#### **c. Criminal Remedies:**

A Criminal Complaint can also be filed against the person infringing the trademark. The Indian Trade Marks Act, 1999 describes that the registered owner of the trademark has a chance to file the FIR through police on the infringer and accordingly the infringer can be punished with the imprisonment for a period not less than six months that may extend to three years and with a fine of INR 50,000 that may extend to INR 2 lakh.

Case Laws on Trademark Infringement:

Coca Cola Vs. Bisleri International Pvt Limited & Others: The defendant (Bisleri International Pvt Ltd) by agreement transferred trademark rights of MAAZA to the plaintiff (Coca-Cola Company) and also gave away the formulation rights, IPR, and know-how along with the goodwill for India for bottling and selling a mango fruit drink  MAAZA to Coca Cola.

In 2008, the defendant subsequently filed an application to register trademark "MAAZA" in Turkey and begin exporting the same fruit drink under name "MAAZA". Coca Cola claimed a permanent injunction and infringement damages for passing off and trademark since it was given to them by Bisleri.

The Hon'ble Delhi High Court in this case upheld the injunction against defendant "Bisleri" for using trademark "MAAZA" and passed an interim order of permanent injunction to prevent the plaintiff from irreparable loss and injury.

Industria De Diseno Textil Sa Vs Oriental Cuisines Pvt Ltd And Ors, Popularly Known As Zara Fashion Vs. Zara Food:

In this case, renowned fashion brand ZARA filed a suit for infringement and passing of their well-known brand ZARA against a restaurant "ZARA TAPAS BAR".

The Delhi High Court ruled out in favour of the renowned fashion brand ZARA, ordered the restaurant to change its name.